

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO SPECIAL MOTION
TO STRIKE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pincite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pincite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pincite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pincite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pincite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pincite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup ("since 2021")**
 - **Proof artifact:** Jessup testifies "since 2021"
 - **Pincite / Source:** Hr'g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pincite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Anti-SLAPP Must Be Denied

Defendants attempt to use Anti-SLAPP step one to shield extrinsic fraud and process corruption. Under Park and Bonni, the court must identify the injury-producing act. Here, the injury-producing acts are out-of-court lulling, the stripped file transfer, and the procurement of rulings by

1 deception—none of which qualify as protected petitioning. Even if prong one were reached, the
2 record evidence (the “Smoking Gun”) establishes a probability of prevailing that far exceeds the
3 minimum-merit standard.

4 **§I.F — Posture Note: The SAC Is Offered as Gravamen Clarification, Not as a Simmons**
5 **End-Run**

6 Plaintiff has concurrently moved for leave to file a Second Amended Complaint (SAC) (see SAC-
7 01 through SAC-07). Plaintiff does not contend that the SAC moots or avoids this anti-SLAPP
8 motion. (Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1073–1074; Salma v. Capon
9 (2008) 161 Cal.App.4th 1275, 1293–1294 [amendment cannot defeat a pending anti-SLAPP].)
10 The SAC is submitted to the Court for two permissible purposes only: (i) as the current, more
11 particularized articulation of the same injury-producing acts the FAC already pleads, useful to
12 the Park/Bonni gravamen analysis; and (ii) as Plaintiff’s specific, tendered proffer if the Court
13 reaches leave to amend under § 425.16 jurisprudence. Nothing in this Opposition asks the Court
14 to substitute the SAC for the FAC as the operative pleading on this motion.

15 Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants
16 is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

17
18 **I-A. WHY THIS CASE IS OUTSIDE PRONG ONE EVEN THOUGH IT**
19 **AROSE AROUND LITIGATION**

20 Not every act occurring during litigation is a protected act under CCP § 425.16. The Supreme
21 Court has repeatedly insisted that the court must first identify the specific **injury-producing act**
22 underlying each claim, and only then classify that act as protected petitioning (or not). (Park, 2
23 Cal.5th at 1062-1063; Bonni, 11 Cal.5th at 1010-1012; Wilson v. Cable News Network, Inc. (2019)
24 7 Cal.5th 871, 884.)

25 Defendants collapse “litigation-adjacent” with “protected.” That is legal error. The FAC’s grava-
26 men lies in:

- 27 (a) out-of-court lulling,
28 (b) file-transfer concealment to successor counsel, and

1 (c) induced procedural rulings.

2 The first two are not communicative petitioning at all. The third is the downstream consequence
3 of the first two, not the injury-producing act itself. Even a case that arose “around” the underlying
4 litigation is outside prong one where the acts that produced the injury are institutional, noncom-
5 municative, or extrinsic to the merits adjudication.

7 **II. STEP-ONE GRAVAMEN DEMAND UNDER PARK AND BONNI**

8 **A. The Mandatory Two-Step Framework**

9 Under *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76, the anti-SLAPP analysis proceeds in
10 two steps:

11 **Step One:** Does the challenged claim arise from protected activity? **Step Two:** If yes, has the
12 plaintiff demonstrated a probability of prevailing?

13 Defendants collapse these two steps. They assume that because their conduct occurred during
14 litigation, the analysis automatically proceeds to step two. This is wrong.

15 **Mandatory parsing — Baral and Wilson.** Even where some allegations touch protected activity,
16 the court must isolate the gravamen and may strike **only** allegations of protected activity, not an
17 entire mixed-conduct complaint. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The step-one inquiry
18 “requires evaluating the defendant’s asserted protected activity in the context of the entire conduct
19 upon which the plaintiff’s claim is based,” including identifying the specific **acts on which liability**
20 **is based** and whether those acts themselves qualify as protected speech or petitioning. (*Wilson v.*
21 *Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) Defendants’ monolithic “entire FAC”
22 framing contradicts both holdings.

23 **B. Park Requires Gravamen Isolation**

24 In *Park v. Bd. of Trustees* (2017) 2 Cal.5th 1057, 1062-1063, the California Supreme Court
25 clarified the step-one analysis:

26 “In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action
27 itself was based on an act in furtherance of the defendant’s right of petition or free
28 speech.” (*Park*, 2 Cal.5th at 1062)

1 The Court must identify the specific **injury-producing act** on which the claim rests and determine
2 whether **that act** is protected petitioning activity. Labels like “litigation conduct” are not self-
3 proving.

4 **C. Defendants Skip the Gravamen Analysis**

5 Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong
6 supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22) But Defendants use Park at step two as
7 part of a privilege block, assuming the answer at step one.

8 The FAC’s gravamen is not “speech or petitioning activity itself.” The FAC’s gravamen is:

- 9 1. Out-of-court communications that led Plaintiff to believe authentication of evidence was un-
10 contested
- 11 2. The file transfer without proper conveyance of production history
- 12 3. Court-facing misrepresentations that induced procedural rulings narrowing Plaintiff’s win-
13 dows
- 14 4. Tribunal reliance producing structural hearing impairment

15 These are not attacks on litigation itself. They are attacks on extrinsic fraud and tribunal reliance.
16 For **Count 7 (constructive fraud, Civ. Code § 1573)** on the proposed SAC, the injury-producing
17 gravamen is the **breach of a duty of candor** to the tribunal and the parallel institutional custody
18 failures, not the fact of petitioning motions or trial advocacy. Park therefore does not collapse
19 Count 7 into protected petitioning merely because MILs were filed.

20 **D. Martinez as Discipline, Not Slogan**

21 Defendants cite Martinez v. Metabolife Inter’l, Inc. (2003) 113 Cal.App.4th 181, 188 for the
22 “principal thrust” test. But Martinez is a discipline for identifying the gravamen, not a magic word
23 that resolves step one. The principal thrust test asks: What is the act that actually produces the
24 injury?

25 Here, the injury-producing acts are noncommunicative institutional failures and misrepresenta-
26 tions, not petitioning itself.

E. Claim-by-Claim Bonni Matrix

Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010-1012 requires the court to parse each claim and each alleged act separately. Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 further requires that the act be an **element** of the claim, not merely evidence of it. Applied here:

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
1 – Extrinsic Fraud / Fraud on the Tribunal	Deception operating outside the adversary contest	Out-of-court lulling communications that induced Plaintiff to forgo authentication/subpoena work before trial	No – out-of-court conduct aimed at Plaintiff, not petitioning a tribunal	FAC ¶¶ 2, 29–33
2 – Fraud / Intentional Misrepresentation	False representation + reliance + damages	Representations that evidence authentication was uncontested, made off-record to Plaintiff	No – communicative but not petitioning; directed to opposing party, not to the court as petition	FAC ¶¶ 40–43

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
3 – Negligent Misrepresentation / Breach of Institutional Duty	Breach of file-custody and production-history-conveyance duty on substitution	File transfer to PSA without conveying production history	No – noncommunicative institutional conduct (Kimmel/Rusheen line)	FAC ¶¶ 34–39
4 – Aiding & Abetting / Agency (CSAA)	Direction, funding, ratification of tortious conduct by principal	CSAA direction/ratification of the file-transfer and litigation positions	No – noncommunicative oversight conduct	FAC ¶¶ 7, 48–55
5 – Procurement-Level Process Corruption	Inducement of procedural ruling through false provenance representation	Court-facing statements that induced exclusion ruling	Communicative, but (a) the injury-producing act for the claim is the procurement of the ruling by deception (illegal-conduct exception) and (b) extrinsic fraud is an element, not the speech	FAC ¶¶ 40–47

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
7 – Constructive Fraud (Civ. Code § 1573)	Duty of candor; misleading act or nondisclosure; inducement; harm (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415)	Same Nine-Point Receipt Chain and officer-of-the-court reliance as Counts 2–3, without scienter	No – mixed <u>Kimmel</u> institutional acts and <u>Action Apartment</u> tribunal channels; <u>Flatley</u> backstop	SAC ¶¶ 157–165

The label “litigation conduct” does not survive the Bonni element-level parse. Each injury-producing act, examined individually, is either noncommunicative (file transfer and principal oversight), aimed outside the tribunal (out-of-court lulling), or within the illegal-conduct/extrinsic-fraud exception (court-facing procurement).

II-A. ACT-BY-ACT PRONG ONE TABLE

The court should analyze each alleged act separately rather than in the aggregate. Defendants’ principal move is to fuse the acts; the table below forces the Bonni element-level review.

Alleged Act	Who Did It	Why Not		Plaintiff's	Supporting Evidence
		Communicative / Noncommu- nicative	Protected / Exception Applies	Contemporaneous Objection / Preservation	
Out-of-court communications lulling Plaintiff into non-action regarding authentication	Carbone, Chambers (underlying counsel)	Communicative, but not petitioning — directed at opposing party, not a tribunal	Not “in connection with an issue under consideration by a judicial body” as against Plaintiff; outside § 425.16(e)	N/A (lulling occurred before Plaintiff had notice of problem)	Plaintiff Decl. ¶¶ 7–10; defense MPA, p.6 framing
File transfer to PSA without conveying production history	Carbone, Chambers; ratified by CSAA	Noncommunicative (institutional custody/transfer act)	Kimmel/Rusheen “necessarily related” test fails; institutional duty existed independent of any privileged communication	N/A (institutional act outside courtroom)	Substitution of Attorney (May 4, 2023); defense MPA, p.6 (“without ensuring proper documentation”)

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
MIL 17 “unknown provenance” filing (Jan. 17, 2025)	PSA (Navaratnas- ingham)	Communicative	Flatley illegal- conduct exception; extrinsic fraud	Jan. 27, 2025: Plaintiff stated “suppress” on record (Hr’g Tr. p. 19) and cited FROG/SROG pincites (Hr’g Tr. p. 32)	CT Vol. 1, p. 238; Hr’g Tr. Jan. 27, 2025
“News to me” representation (Feb. 18, 2025)	Navaratnasingham	Communicative	Illegal conduct— same-day contradiction (p. 141 vs. p. 181) establishes scienter	Feb. 18, 2025: Plaintiff stated “concealed” and “going on the record” (Hr’g Tr. pp. 17, 44–45)	Hr’g Tr. Feb. 18, 2025, pp. 141, 181

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
CSAA direction, funding, ratification of litigation position	CSAA	Noncommunicat (institutional oversight)	Not petitioning; commercial- insurance administrative conduct	N/A (principal oversight)	FAC agency ¶¶; Civ. Code § 2338
Procedural- window narrowing (induced continuance denial / exclusion ruling)	Court, induced by defense	Result of the injury- producing acts, not itself the claim's gravamen	Park requires analysis of the injury- producing act, not downstream rulings	Jan. 27, 28; Feb. 3, 18: All four Plaintiff procedural vehicles denied	Minute orders; trial transcript

The third column (“Plaintiff’s Contemporaneous Objection / Preservation”) shows the Court has **already heard** each suppression vector in open court. Plaintiff preserved objections on four separate hearing dates. This further distances the present action from any “retry the same case” characterization—Plaintiff was procedurally foreclosed, not silent.

II-B. EVEN IF SOME ACTS ARE PROTECTED, THE CLAIM DOES NOT ARISE FROM PROTECTED ACTIVITY IN SUBSTANCE

If the court concludes that one or more sub-acts (e.g., a specific court-facing statement) were communicative petitioning, the motion still fails. Under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, only allegations of protected activity are subject to striking; the claim as a whole survives if it rests substantially on unprotected conduct. Under *Park*, 2 Cal.5th at 1064, conduct that merely provides “evidentiary support” for a claim does not supply arising-from status.

Here, even subtracting any assertedly protected sub-acts:

- the out-of-court lulling (aimed at Plaintiff, not a tribunal) remains;
- the file-transfer concealment (noncommunicative institutional act) remains;
- the CSAA direction/ratification (noncommunicative oversight) remains.

The claim’s substance rests on this unprotected core. At most, Defendants have identified evidentiary cousins to protected activity — and *Park* expressly forbids converting evidentiary support into arising-from.

III. CONDUCT VS. COMMUNICATION: THE KIMMEL LINE

A. Civil Code Section 47(b) Protects Communications, Not All Conduct

Defendants assert blanket immunity under Civil Code section 47(b), reproducing the statute and a four-part gloss on the litigation privilege. (Anti-SLAPP MPA, pp. 8–9, ll. 1–28 [*L.G. v. M.B.* formulation and related privilege string cites].) But the litigation privilege protects qualifying **communications**, not every act during litigation.

B. The Kimmel Boundary

Kimmel v. Goland (1990) 51 Cal.3d 202, as discussed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057, establishes the strict boundary between protected communications and unprotected noncommunicative conduct.

The FAC alleges noncommunicative institutional acts: - File custody failures during the file transfer from Carbone/Chambers to successor counsel - Production-history omission on substitution

- Agency oversight failures by CSAA as institutional principal - Procedural-window narrowing through noncommunicative process failures

These allegations do not reduce to “speech or petitioning activity itself.”

C. Gravamen Matrix — File-Transfer Failure (Analyzed Separately)

The file-transfer failure is a discrete, noncommunicative institutional act. Defendants’ MPA (p.6) acknowledges the transfer occurred “without ensuring proper documentation.” That act is a pre-substitution custody failure by prior counsel, executed by and ratified by CSAA as the institutional principal. It is not a communication to any tribunal; it is a custodial hand-off between law firms.

Defense Abstraction	FAC Actual Act	Classification
“Litigation activity”	File transfer to PSA without production-history conveyance	Noncommunicative institutional conduct (outside § 47(b) and § 425.16)
“Privileged representation”	CSAA direction/ratification of file-transfer defect	Noncommunicative oversight conduct by commercial insurer

C-1. Gravamen Matrix — Court-Facing Misrepresentation (Analyzed Separately)

The court-facing misrepresentation is a distinct, communicative act — but one falling within the extrinsic-fraud and illegal-conduct exceptions. This act is downstream of, and made possible by, the file-transfer failure; it must not be blended with it.

Defense Abstraction	FAC Actual Act	Classification
“Protected petitioning”	Court-facing statements as to evidence provenance that induced exclusion ruling	Communicative, but procurement of ruling by deception — extrinsic fraud / illegal conduct (Flatley exception)

Defense Abstraction	FAC Actual Act	Classification
“Communications made during proceedings”	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme; lulling phase not petitioning at all

The Court should apply Park and Bonni at the proper level of abstraction to each act separately. The defense’s labels do not survive gravamen analysis when the file-transfer and court-facing acts are held apart.

D. Rusheen’s “Necessarily Related” Test Is Not Satisfied

Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058 holds that noncommunicative acts receive § 47(b) protection only where they are “**necessarily related**” to a privileged communication. The inverse follows: where a noncommunicative act is **not** necessarily related to a privileged communication, it falls outside the privilege and, by extension, outside the prong-one umbrella Defendants attempt to import from § 47(b).

The file-transfer, production-history conveyance, and CSAA agency-oversight acts are pre- and post-litigation institutional duties. They exist independent of any specific privileged communication: the duty to convey a file accurately to successor counsel on substitution is a general custodial and professional obligation, not the execution of any particular courtroom filing. (See Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600, 611 [noncommunicative acts outside privilege scope].) The “necessarily related” hook is absent. Rusheen therefore does not sweep these acts into protected-activity status.

E. Silberg’s Four-Part Test Does Not Erase the Conduct/Communication Line or the Extrinsic-Fraud Exception

Defendants’ papers invoke the familiar four-part formulation for the litigation privilege (Silberg v. Anderson (1990) 50 Cal.3d 205, 212–214) as if it were a universal solvent. Silberg describes when a **communication** in a judicial proceeding is privileged; it does not convert institutional file-custody acts into “communications.” Rusheen, supra, 37 Cal.4th at page 1058, cautiously extends § 47(b) only to noncommunicative acts **necessarily related** to an underlying privileged commu-

1 nication — a narrow tether Defendants’ briefing does not satisfy for the May 4, 2023 transfer
2 allegations.

3 Nor does Silberg address the intersection of § 47(b) with **extrinsic fraud**. Action Apartment
4 Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–1247 reaffirms that extrinsic fraud
5 is an exception to the litigation privilege. Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970
6 supplies the conduct-versus-communication boundary in the post-Rusheen landscape: not every
7 act “during” litigation is a privileged communication merely because counsel performed it.

8

9 **IV. THE ILLEGAL-CONDUCT AND EXTRINSIC-FRAUD STRAND OF**
10 **FLATLEY**

11 Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325, conduct that is illegal as a matter of law
12 cannot be protected petitioning. Where, as here, (i) the trial court expressly articulated reliance
13 on defense counsel’s officer-of-the-court candor (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7), and (ii)
14 the certified record later established defense counsel’s admission that the very materials she had
15 denied receiving were “provided by Dolan” (RT 7, Apr. 16, 2025, p. 213, ll. 13–15), the inducing
16 representation is knowingly false as a matter of law. Section 425.16 does not protect it.

17 The Court’s February 28, 2025 articulation is dispositive:

18 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
19 They are an officer of the Court, and they are supposed to conduct themselves appropri-
20 ately before the Court.”

21 — Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:4.

22 That institutional reliance was misplaced, as the April 16, 2025 admission demonstrates. The
23 resulting burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I
24 won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was procured through the very
25 candor the Court relied upon.

IV-A. Scierter is Evident From Defendants’ Own In-Court Contradictions Within a Three-Week Window

Before reaching Defendants’ Flatley arguments, the Court should observe that the scierter requirement for the illegal-conduct exception is satisfied by **Defendants’ own hearing and trial transcripts**. The Judicial Admission Matrix (lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) documents:

Date	Position A (denial/suppression)	Position B (admission/possession)
Jan. 17, 2025	MIL 17: “no production” / “no idea”	—
Jan. 27, 2025	Defense opposes continuance	Plaintiff: “suppress” on record (p. 19)
Jan. 28, 2025	Defense § 581(d) dismissal motion	Court: “immediate reversal” (p. 90)
Feb. 3, 2025	Defense renews § 581(d) under submission	Ex parte disclosure order (pp. 109, 116, 122–124)
Feb. 18, 2025	“news to me” (p. 141)	same hearing : “all this stuff has been in his possession since August” (p. 181)
Apr. 16, 2025	Stacked foundation attacks	“They were provided by Dolan. . .” (RT 7, p. 213)

The Laws-Broken Matrix (Flatley “Illegal as a Matter of Law” Proof)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion (misdemeanor)	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 8.4(c)	Dishonesty, fraud, deceit	Pattern across four hearings.
CCP § 128.5	Bad-faith actions	Procurement of exclusion through false statements.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor; additional illegality hook alongside § 6128(a).

Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320, conduct that is **illegal as a matter of law**—including fraud on the court—falls outside § 425.16 protection. The **three-week whipsaw** between Position A (Jan. 17 MIL) and Position B (Feb. 18 p. 181) establishes illegality conclusively, not just as a factual dispute. The Feb. 18 intra-hearing contradiction (p. 141 vs. p. 181) was made by the **same attorney** on the **same day**—foreclosing any “ignorance” narrative.

A. Defendants’ Selective Reading of Flatley

Defendants quote Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 extensively for its policy paragraph on “finality of judgments”:

“[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result.” (Anti-SLAPP MPA, p.9, ll.17-21, quoting Flatley, 39 Cal.4th at 322)

B. The Illegal-Conduct Exception — Narrow, But Applicable

Defendants quote Flatley’s finality paragraph without addressing Flatley’s illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning activity is illegal

1 as a matter of law — either conceded or established as a matter of law — it loses Anti-SLAPP
2 protection. Plaintiff acknowledges that the exception is narrow and does not extend to merely
3 disputed illegality. (Id. at 320.)

4 The Court’s operative formulation is: “section 425.16 cannot be invoked by a defendant whose
5 assertedly protected activity is illegal as a matter of law and, for that reason, not protected by
6 constitutional guarantees of free speech and petition.” (Flatley v. Mauro, supra, 39 Cal.4th at
7 p. 320.) Read in tandem with Action Apartment, supra, 41 Cal.4th at pp. 1242–1247, the FAC’s
8 procurement-by-deception theory falls outside the “valid” petitioning Flatley and § 425.16, subd.
9 (a), were enacted to immunize — even before reaching step two’s probability standard.

10 Extrinsic fraud on the tribunal is a recognized common-law tort with criminal analogs: Penal Code
11 § 132 (offering false evidence), § 134 (preparing false evidence), and § 182 (conspiracy). See
12 Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704-705 (filing a knowingly false police report
13 is illegal as a matter of law and not protected activity). The two-phase pattern pleaded — out-of-
14 court lulling followed by induced court-facing misrepresentation — mirrors the conduct Lefebvre
15 held unprotected.

16 Plaintiff does not rest the Anti-SLAPP opposition primarily on Flatley. The primary defeater is
17 the Bonni/Park step-one analysis set out in Sections I-A, II, and II-A above. Flatley operates as
18 a secondary backstop only if the court concludes that any specific court-facing act survives the
19 gravamen parse.

20 **C. Action Apartment: The Extrinsic Fraud Exception**

21 Defendants’ briefing does not discuss Action Apartment Ass’n v. City of Santa Monica (2007) 41
22 Cal.4th 1232, 1242-1247, which establishes that **extrinsic fraud is an exception** to the litigation
23 privilege.

24 At 41 Cal.4th 1242, the Court discussed Silberg and Albertson and clarified the boundaries of the
25 litigation privilege in the context of fraud on the court.

26 This exception is mandatory. Defendants cannot cite Flatley without addressing Action Apartment.
27

V. STEP TWO: MINIMUM-MERIT SHOWING IF REACHED

Defendants contend that if prong one is satisfied, Plaintiff cannot meet prong two’s probability standard. (Anti-SLAPP MPA, pp. 12–13 [citing Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244–1245 and arguing the privilege defeats probability].)

Step two asks only whether Plaintiff has stated and substantiated a legally sufficient claim with “minimum merit” — a low bar. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820 [“not insubstantial”]; Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89 [prima-facie standard]; Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244-1245.)

V.A The Minimum-Merit Showing

The four elements of extrinsic fraud are: (1) a deliberate deception or concealment by the opposing party or its agents; (2) operating outside the adversary contest such that the complaining party was prevented from fully presenting a claim or defense; (3) actual and reasonable reliance; and (4) resulting prejudice from the lost procedural opportunity. Each element is mapped to a specific paragraph of Plaintiff’s Declaration (Ex. 1 to these Oppositions):

Element	Specific Factual Assertion	Declaration Pin-Cite
(1) Deliberate deception/concealment	Out-of-court representations that authentication of evidence was uncontested, followed by stripped-file transfer to successor counsel on May 4, 2023 substitution	Pl. Decl. ¶¶ 7–10, 15

Element	Specific Factual Assertion	Declaration Pin-Cite
(2) Operating outside the adversary contest	Lulling communications occurred off-record, directed to Plaintiff personally; file-transfer concealment occurred between law firms, outside any courtroom proceeding	Pl. Decl. ¶¶ 7–10, 15–17
(3) Actual and reasonable reliance	Plaintiff forwent pre-trial authentication, subpoena, and continuance motion practice in reliance on the out-of-court posture	Pl. Decl. ¶¶ 11–13, 18–19
(4) Prejudice from lost procedural opportunity	Induced exclusion of evidence; denied continuance; closed discovery window; loss of specific subpoena/authentication opportunity	Pl. Decl. ¶¶ 18–20

V.A-1 Minimum Merit for Count 7 (Constructive Fraud) on the Proposed SAC

If the Court reaches step two as to **Count 7**, the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements are supported by the same prima facie core as extrinsic fraud: the **Nine-Point Receipt Chain** (Exhibit 2 / Pl. Decl. Section I-B), Plaintiff’s **officer-of-the-court reliance** paragraphs (Pl. Decl. ¶¶ 31–32), the **February 28, 2025** officer-of-the-court colloquy (Hr’g Tr. pp. 291–294), and the **April 16, 2025** admission (RT 7, p. 213, ll. 13–15). Those record anchors supply a confidential or fiduciary advantage, breach, inducement, and harm at the low Navellier / Oasis West threshold.

V.B Step Two Evidentiary Showing If Reached

If the court reaches step two, Plaintiff's minimum-merit showing rests on an unrebutted evidentiary triad:

1. **Defendants' own Anti-SLAPP Demurrer MPA (p.6)**, admitting the file transfer occurred "without ensuring proper documentation." This is party-admission-grade evidence of the noncommunicative institutional act at the center of the FAC.
2. **Plaintiff's Declaration**, establishing (a) the out-of-court lulling communications and the dates and counterparties, (b) the May 4, 2023 substitution timeline, and (c) what Plaintiff would have done differently (subpoena, authentication, continuance) absent the lulling.
3. **Trial transcript**, reflecting the court-facing shift by successor counsel as to evidence profferance and the ensuing evidentiary ruling that excluded the evidence.

The Nine-Point Receipt Chain (Audacity Exhibit)

#	Date	Proof Artifact	Pincite / Source
1	Aug. 18, 2022	Service of 911 audio by Dolan to CSK	Jessup Tr. Feb. 18, pp. 139-140
2	Aug. 18, 2022	Rosario deposition — Chambers present	Rosario depo tr.
3	Sept. 30, 2022	Abdelhalim deposition — Chambers present	Abdelhalim depo tr.
4	May 4, 2023	CSK → PSA file transfer	Substitution of Attorney
5	Feb. 1, 2024	PSA subpoena for identical materials	Order CA1147102-021

#	Date	Proof Artifact	Pincite / Source
6	Feb. 26, 2024	PSA receives production from SFPD	Report 210079556
7	Sept. 9, 2024	Plaintiff's FROG/SROG served on Reyna	Discovery records
8	Feb. 18, 2025	Jessup confirms Dolan copy since 2021	Hr'g Tr. p. 139
9	Apr. 16, 2025	ADMISSION OF RECEIPT	RT 7, p. 213

This triad establishes a prima facie case of extrinsic fraud. Under *Oasis West*, 51 Cal.4th at 820 and *Navellier*, 29 Cal.4th at 88-89, that is all step two requires.

V.C Scierer Established by the Seventeen-Page Whipsaw

Plaintiff has more than a minimum of merit on the fraud-on-the-court element because the **scierer admission is in Defendants' own mouths**, seventeen pages apart on a single hearing transcript:

- **Feb. 18, 2025, p. 141:** “our office did not receive the 911 call until the day of the MSC... this is news to me.”
- **Feb. 18, 2025, p. 181:** “we oppose the continuance... the body cam footage, the 911 call, all this stuff has been in his possession since August.”

The intra-hearing contradiction—made by the **same attorney** on the **same day**—forecloses the “ignorance” element of judicial estoppel under *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422. The casual phrasing of Position B (“for whatever, sure”) on April 16, 2025 (RT 7, p. 213) demonstrates that the Dolan origin was a **known, settled fact** within the defense team—not a recent discovery. This is minimum merit on scierer.

V.D Prima-Facie Tribunal Finding on Authentication

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt. On a demurrer or prong-two inquiry, the tribunal’s own finding establishes prima facie authentication by acquiescence under Evidence Code § 1414(b).

V.E Plaintiff’s Contemporaneous Preservation

Plaintiff’s contemporaneous diligence is documented on the transcript:

- **Jan. 27, 2025:** “We have two 911 records that the Defense has been trying to suppress.” (Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)
- **Jan. 27, 2025:** “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025, p. 42, ll. 1–8.)
- **Feb. 18, 2025:** “this denial and this delay is very convenient.” (Hr’g Tr. Feb. 18, 2025, p. 166, ll. 1–9.)
- **Feb. 18, 2025:** “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

This contemporaneous record establishes element 3 (reasonable reliance) of City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493: Plaintiff spoke up and was denied relief, which is why his reliance on the prior 883-day silence was reasonable.

V.F — How the SAC Strengthens (But Does Not Replace) the Prong-Two Showing

If the Court reaches prong two, the proposed SAC (offered for the limited purpose stated in § I.F) supplies two pleading advantages that further exceed the minimum- merit threshold without altering the injury-producing acts:

1. **Count 7 (constructive fraud, Civ. Code § 1573; Assilzadeh, supra, 82 Cal.App.4th at p. 415) is scienter-light.** It rests on duty-of-candor breach and the Nine-Point Receipt Chain without requiring proof of intent to deceive, and therefore survives any residual privilege or intent-based attack on Counts 2–3.

1 2. **Count 4 (SAC ¶ 141A) pleads conspiracy only as a joint-liability theory attaching to un-**
2 **derlying torts.** (Applied Equipment, supra, 7 Cal.4th 503.) This forecloses the “freestanding
3 conspiracy tort” objection defendants telegraph.

4 Neither refinement changes the prong-one gravamen already briefed above; they confirm that on
5 the merits the case is more than “minimally” meritorious.

7 **VI. PRECLUSION SUBSECTION: REJECT SINGH WITHOUT CROW-**
8 **LEY**

9 **A. Defendants’ Collateral Estoppel Argument**

10 Defendants invoke F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, Wouldridge v. Burns
11 (1968) 265 Cal.App.2d 82, and Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for a collateral-
12 attack / issue-preclusion shell. (Anti-SLAPP MPA, p. 14, ll. 1–18.)

13 Defendants cite Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for the proposition that “col-
14 lateral estoppel precludes relitigation of issues argued and decided in prior proceedings.”

15 **B. Defendants Ignore the Mandatory Crowley Analysis**

16 Singh requires an exact **issue match**. Under Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682,
17 the Court must map the parties, issues actually litigated, and primary rights enforced. Mycogen
18 Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904 confirms California’s primary-right test; Boeken
19 v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798 reinforces that the same primary right must
20 have been at stake in both actions.

21 **The underlying trial** adjudicated the primary right to be free from negligent conduct (car collision
22 liability).

23 **This FAC** asserts the primary right to a fair adversary hearing, free from extrinsic fraud.

24 These are different primary rights. The jury never decided: - Whether the defense withheld pro-
25 duction history during the file transfer - Whether misrepresentations about evidence provenance
26 were made to the judge - Whether those misrepresentations induced procedural rulings

27 Collateral estoppel separately requires that the issue have been “**necessarily decided**” in the prior
28 case. (Lucido v. Superior Court (1990) 51 Cal.3d 335, 341-342.) Extrinsic fraud on the tribunal

— by definition operating outside the merits adjudication — was not and could not have been necessarily decided by a negligence verdict.

Collateral estoppel does not apply without issue-match and necessary decision. Defendants cannot invoke Singh without Crowley, Mycogen, Boeken, and Lucido.

C. Commercial Speech / Insurance Course of Business

Independently, concealment of production history was an administrative, file-management failure by a commercial insurer (CSAA) during a change of vendors (law firms). Under any reasonable classification, such administrative, custodial conduct by a commercial insurer is unprotected business conduct, not petitioning activity within § 425.16(e). Insurance course-of-business administration does not gain protected-activity status merely because it happens to sit adjacent to a covered claim in litigation.

VII. INSURANCE-CHANNEL MISREAD: MORADI-SHALAL PRESERVES FRAUD JURISDICTION

A. Defendants’ Implicit Position

Defendants implicitly argue that Plaintiff cannot sue an insurer as a third party, relying on Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 and companion cases in their coordinated demurrer. (Demurrer MPA, p. 14, ll. 17–24.) The Anti-SLAPP papers channel the same insurer/counsel immunity themes through privilege and “protected activity” labels. (Anti-SLAPP MPA, pp. 8–10 [§ 47(b) overlay and gravamen rhetoric].)

B. Moradi-Shalal Preserves Common Law Fraud Jurisdiction

Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, specifically at **page 305**, explicitly preserves common law fraud jurisdiction against insurers.

Defendants rely on Shaolian (an assignment case) while ignoring the California Supreme Court’s explicit carve-out for fraud claims. The FAC alleges **institutional agency** under Civil Code section 2338, not a generic third-party claim.

1 **VIII. FEES (FOOTNOTE)**

2 Plaintiff reserves, but does not press at this stage, any request under Code of Civil Procedure §
3 425.16(c)(1).¹

5 **IX. CONCLUSION**

6 Defendants’ Anti-SLAPP motion fails at every stage:

7 **Step One:** Defendants skip the mandatory Park gravamen analysis. The FAC’s gravamen is ex-
8 trinsic fraud and tribunal reliance, not “speech or petitioning activity itself.” Noncommunicative
9 institutional acts fall outside the litigation privilege under Kimmel.

10 **Privilege Exceptions:** Defendants ignore Flatley’s illegal-conduct exception and Action Apart-
11 ment’s extrinsic fraud exception.

12 **Preclusion:** Defendants invoke Singh without performing Crowley’s primary rights mapping. The
13 FAC asserts a different primary right than the underlying negligence trial.

14 **Insurance Channel:** Moradi-Shalal preserves common law fraud jurisdiction, which Defendants
15 ignore.

16 For these reasons, Plaintiff respectfully requests the Court deny the Special Motion to Strike in its
17 entirety.

19 **X. RELIEF REQUESTED**

20 Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

- 21 1. **Deny the Special Motion to Strike** in its entirety;
- 22 2. **Alternatively, grant leave to amend** consistent with Section XI;
- 23 3. **Sustain Plaintiff’s objections to Defendants’ Request for Judicial Notice** as set forth in
24 the companion Objection;
- 25 4. **Sustain Plaintiff’s evidentiary objections** to the supporting declarations as set forth in the
26 companion Evidentiary Objections; and

¹Section 425.16(c)(1) permits a fees award to a prevailing plaintiff only where the motion is frivolous or solely intended to cause unnecessary delay. Plaintiff does not seek fees on this opposition and notes the issue only to preserve it. The primary relief requested is denial of the motion on the doctrinal grounds set out above.

1 5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary
2 Objections.
3 _____

4 **XI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY**

5 Should the Court conclude that any sub-allegation requires further specificity, leave to amend
6 would cure any identified deficiency. Plaintiff proffers, on leave to amend: (1) the dates and con-
7 tent of specific CSAA directives to defense counsel concerning authentication, provenance, and
8 production history of 911 audio and CAD records, including the CSAA personnel issuing each
9 directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the
10 May 4, 2023 substitution and the specific categories of production-history materials not conveyed;
11 and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff
12 relied to defer authentication, subpoena, and sequencing steps.

13 These particulars confirm that amendment would not be futile. Under *Baral v. Schnitt* (2016) 1
14 Cal.5th 376, 396, striking under § 425.16 is confined to allegations of protected activity; the claim
15 as a whole survives if it rests substantially on unprotected conduct. Any residual imprecision in
16 pleading the unprotected core can be cured by the proffered specificity, and the request for leave is
17 consistent with the liberal amendment standard.

18 _____
19 **DATED:** April 16, 2026

20 Respectfully submitted,
21 _____

22 FRANCISCUS DYLAN ROSARIO
23 _____

EXHIBIT 1: GRAVAMEN MATRIX (EXPANDED)

Defense Characterization vs. FAC Allegations Under Park

#	Defense Abstraction (Anti-SLAPP MPA)	FAC Actual Allegation	True Gravamen (Park/Bonni Analysis)	Protected Activity?	Specific FAC Paragraph
1	“Privileged litigation conduct” (p.12, l.28)	Out-of-court communica- tions inducing reliance on evidence resolution	Extrinsic fraud channel	NO	FAC ¶¶ 2, 29–33
2	“Litigation activity” (p.7, l.8)	File transfer without proper production history conveyance	Noncommunicat institutional conduct	NO	FAC ¶¶ 34–39
3	“Judicial proceeding” (p.12, l.28)	Misrepresentation to Court about receipt and provenance	Tribunal reliance, process corruption	Exception applies (Flat- ley/Lefebvre)	FAC ¶¶ 40–47

#	Defense	FAC Actual Allegation	True	Protected Activity?	Specific FAC Paragraph
	Abstraction (Anti-SLAPP MPA)		Gravamen (Park/Bonni Analysis)		
4	“Defending the insured” (p.13, l.2)	CSAA direction and ratification of deceptive conduct as principal	Agency liability, Civ. Code § 2338	NO	FAC ¶¶ 7, 48–55
5	“Protected petitioning” (implied throughout)	Procedural-window narrowing through induced rulings	Structural hearing impairment	NO	FAC ¶¶ 46–47
6	“Communication made during proceedings” (p.9, l.17)	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme	Exception applies	FAC ¶¶ 2, 45

Eight Sentences from Defendants’ MPA That Misstate California Law

#	Location	Sentence	Why It Misstates the Law
1	p.8, l.4-6	Digerati extends privilege to pre-litigation statements	Digerati addresses communications; does not subsume noncommunicative fraud channels
2	p.9, ll.17-21	Flatley finality paragraph as universal bar	Omits Flatley's illegal-conduct exception
3	p.12, ll.27-28	Pollock resolves doubts in favor of privilege	Pollock only applies after privilege coverage is established; does not delete Park
4	p.13, ll.20-22	Park supports Anti-SLAPP for any litigation-related claim	Park requires gravamen isolation, which Defendants skip
5	p.13, ll.25-26	Singh collateral estoppel as automatic bar	Singh requires issue-match under Crowley
6	p.8, ll.17-19	Bergstein protects all litigation statements	Does not address extrinsic fraud exception
7	p.12, l.11	Briggs equalizes section 425.16 and section 47(b)	Coordination does not erase exceptions in either doctrine

#	Location	Sentence	Why It Misstates the Law
8	p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations and cannot be made at this stage

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Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S COMBINED
OBJECTION TO RFJN AND
EVIDENTIARY OBJECTIONS TO
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth. Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not extend to the truth of hearsay statements or disputed facts within that document.

“While courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482-483.)

Accord *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking judicial notice of a document, accept the truth of factual assertions appearing in it, because those assertions are hearsay); *Unruh-Haxton v. Regents of Univ. of California* (2008) 162 Cal.App.4th 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal effect of rulings; it does not extend to the truth of factual matters asserted in those records); *People*

1 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
2 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
3 contained in the record).

4 **C. The Facial Test Rule**

5 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
6 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
7 into the demurrer record.

9 **III. OBJECTIONS TO DEMURRER REJN (CLERK FILE NO. 10157173)**

10 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
11 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
12 Superior Court Case No. CGC-21-594102.

13 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 14 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
15 dicted
- 16 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
17 ing well-pleaded allegations
- 18 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous
19 and cannot be used to recharacterize its allegations.

20 **(b) Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 21 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
24 disputed claim-splitting questions on demurrer.

25 **(c) Exhibit C — Register of Actions, CGC-21-594102**

- 26 • **What defense uses it to prove:** That “all issues” were litigated below
- 27 • **Objection:** OBJECT to improper use
- 28 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.

Docket entries do not establish the substantive scope of what was decided.

(d) **Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)**

- **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
- **Objection:** OBJECT
- **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does not prove the adequacy or completeness of the underlying file transfer — the central disputed fact.

(e) **Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)**

- **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion papers are hearsay as to their factual assertions (Sosinsky).

(f) **Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(g) **Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(h) **Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)**

- **What defense uses it to prove:** That MIL rulings foreclose the present claims
- **Objection:** OBJECT to improper use
- **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.

(i) **Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)**

- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues

1 • **Objection:** OBJECT

2 • **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed
3 sufficiency of evidence, not extrinsic fraud in procurement.

4 (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**

5 • **What defense uses it to prove:** Same as Exhibit I

6 • **Objection:** OBJECT

7 • **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.

8 (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** Same

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.

12 (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**

13 • **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues

14 • **Objection:** OBJECT

15 • **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive
16 with an independent extrinsic-fraud action.

17 (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

18 • **What defense uses it to prove:** Same

19 • **Objection:** OBJECT

20 • **Grounds:** Hearsay; Sosinsky.

21 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**

22 • **What defense uses it to prove:** That FAC claims lack merit / are precluded

23 • **Objection:** OBJECT to improper use

24 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
25 fraud allegations were adjudicated.

26 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
27 **(CGC-21-594102)**

28 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected

- **Objection:** OBJECT
 - **Grounds:** Existence only; object to use for truth.
- (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same — preclusion by prior denial
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
 - **Objection:** OBJECT on relevance
 - **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent equitable action for extrinsic fraud.
- (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** That a facially valid judgment bars this action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting / duplication
 - **Objection:** OBJECT to improper use
 - **Grounds:** Same grounds as Exhibit B.

IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)

The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are additional to, and cumulative with, the objections stated in Section III.

1 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 2 • **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- 3 • **Objection:** OBJECT to improper use
- 4 • **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot
- 5 substitute for prong-one gravamen analysis.

6 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 7 • **What defense uses it to prove:** Prong-two “lacks minimal merit”
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial
- 10 notice of a separate pleading.

11 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 12 • **What defense uses it to prove:** That all issues were previously litigated (prong two)
- 13 • **Objection:** OBJECT
- 14 • **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

15 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 16 • **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- 17 • **Objection:** OBJECT
- 18 • **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-
- 19 Haxton).

20 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 21 • **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- 22 • **Objection:** OBJECT
- 23 • **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

24 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 25 • **What defense uses it to prove:** Same
- 26 • **Objection:** OBJECT
- 27 • **Grounds:** Same grounds as E.

28 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

1 • **What defense uses it to prove:** Same

2 • **Objection:** OBJECT

3 • **Grounds:** Same grounds as E.

4 (h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

5 • **What defense uses it to prove:** That MIL rulings foreclose prong-two merits

6 • **Objection:** OBJECT to improper use

7 • **Grounds:** Existence/legal effect only; no notice of factual recitals.

8 (i) **Exhibit I — Plaintiff's JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** That Plaintiff previously raised these issues

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

12 (j) **Exhibit J — Plaintiff's Decl. ISO JNOV (CGC-21-594102)**

13 • **What defense uses it to prove:** Same

14 • **Objection:** OBJECT

15 • **Grounds:** Hearsay in court file; Arce.

16 (k) **Exhibit K — Defendant's Opposition to JNOV (CGC-21-594102)**

17 • **What defense uses it to prove:** Same

18 • **Objection:** OBJECT

19 • **Grounds:** Hearsay; adversarial characterizations.

20 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**

21 • **What defense uses it to prove:** Same

22 • **Objection:** OBJECT

23 • **Grounds:** Not co-extensive with extrinsic-fraud action.

24 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

25 • **What defense uses it to prove:** Same

26 • **Objection:** OBJECT

27 • **Grounds:** Hearsay.

28 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**

- **What defense uses it to prove:** That FAC claims lack minimal merit
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; no notice for truth.
- (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only.
- (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Pendency / jurisdictional effect
 - **Objection:** OBJECT on relevance
 - **Grounds:** Does not divest this Court of jurisdiction.
- (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** Facially valid judgment bars action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Facial validity does not preclude extrinsic-fraud attack.
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting
 - **Objection:** OBJECT to improper use
 - **Grounds:** Hearsay; characterizations; merits inference.
-

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants' RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

1 **C. Matters Outside the Issues Decided**

2 Defendants conflate what the underlying trial adjudicated with the FAC's allegations of extrinsic
3 fraud.

4 **The underlying trial decided:** Whether the Insured was negligent and liable for the car collision.

5 **The underlying trial did not decide:** - Whether Defendants withheld production history dur-
6 ing the file transfer - Whether Defendants made misrepresentations to the Court about evidence
7 provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff
8 was deprived of a fair adversary hearing through extrinsic fraud

9 Judicial notice of the trial record cannot establish that these issues were adjudicated.

10 **D. Issue-Preclusion by Judicial Notice**

11 Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could
12 only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine,
13 post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that
14 every issue relevant to this action was already decided below.

15 That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, ac-
16 tual litigation, necessary determination, and finality. Judicial notice under Evidence Code section
17 452(d) establishes none of those elements; it establishes only that documents exist and that spec-
18 ified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565;
19 Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot "notice"
20 its way to preclusion.

21 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

22 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
23 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
24 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
25 a document and a disputed legal conclusion.

26 The same bootstrap underlies Defendants' repeated "presented to the jury" refrain: notice the
27 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
28 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved

for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375; Sosinsky, 6 Cal.App.4th at 1564-1565.)

VI. THE PROPER SCOPE OF JUDICIAL NOTICE

Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The verdict form - Post-trial orders - The notice of appeal - Other court records

Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents - Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual conclusion that contradicts the FAC's well-pleaded allegations

VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice

Defendants' RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party is entitled to introduce contextually related portions.

Objection: Plaintiff objects to Defendants' piecemeal notice and asks the Court to take notice of the **whole transcripts** identified in Plaintiff's RFJN Items X–BB, which include:

- Hr'g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff's "suppress" objection; FROG/SROG confirmation; denial of continuance).
- Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order).
- Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff's "concealed" and "going on the record" statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356's "rule of completeness," the Court should either take the whole transcripts or decline to take the defense fragment.

VI.A The "Presented to the Jury" Argument Is a Merits Inference That Exceeds Judicial Notice

Defendants' central refrain across both RFJNs — that the 911 calls, body-cam footage, and related materials were "presented to the jury" and therefore no fraud can have occurred — is not a request

1 for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

2 1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits,
3 (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified
4 rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459;
5 Unruh-Haxton, 162 Cal.App.4th at 364-365.)

6 2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly
7 presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and
8 chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d)
9 that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each
10 of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565;
11 Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)

12 3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept
13 from the adversary proceeding — misrepresentations about provenance, undisclosed chain-
14 of-custody facts, and concealed production history. Judicial notice of what was shown to the
15 jury is logically incapable of negating what was withheld from the jury. The “presented to the
16 jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.

17 4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference
18 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
19 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.

20 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
21 verdict. It should decline to notice any inference — express or implied — that the verdict or the
22 trial record negates the extrinsic-fraud allegations of the FAC.

23 VII. CONCLUSION

24 Defendants’ RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
25 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
26 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
27 truth of contents.
28

Plaintiff respectfully requests the Court:

1. Sustain objections to judicial notice for the truth of disputed facts
2. Sustain objections to judicial notice of hearsay statements in court records
3. Sustain objections to judicial notice of matters outside the issues decided
4. Apply the facial test rule and accept FAC allegations as true

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)

Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)

Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler J. O’Connell. The consolidated ruling requested is as follows:

(a) Exhibit A — Plaintiff’s FAC (CGC-25-631801)

- **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

(b) Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)

- **Ruling requested:** Notice existence ONLY; object to truth/characterizations

(c) Exhibit C — Register of Actions (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication

(d) Exhibit D — Substitution of Defense Counsel (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy

(e) Exhibit E — MIL #6 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(f) Exhibit F — MIL #8 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(g) Exhibit G — MIL #17 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

- 1 (h) **Exhibit H — Order re Trial Scheduling and MILs**
- 2 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 3 (i) **Exhibit I — Plaintiff’s JNOV Motion**
- 4 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 5 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
- 6 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 7 (k) **Exhibit K — Defendant’s Opposition to JNOV**
- 8 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 9 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
- 10 • **Ruling requested:** Notice existence ONLY; object to truth
- 11 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
- 12 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 13 (n) **Exhibit N — Order on Post-Trial Motions**
- 14 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 15 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
- 16 • **Ruling requested:** Notice existence ONLY; object to truth
- 17 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**
- 18 • **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- 19 (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
- 20 • **Ruling requested:** OBJECT on relevance
- 21 (r) **Exhibit R — Plaintiff’s Notice Designating Record**
- 22 • **Ruling requested:** OBJECT on relevance
- 23 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
- 24 • **Ruling requested:** Notice existence ONLY; object to preclusion inference
- 25 (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- 26 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 27
-

PART B — EVIDENTIARY OBJECTIONS TO DEFENDANTS’ DECLARATIONS

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on personal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

1 **C. Hearsay Inadmissible**

2 Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation
3 of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their
4 truth is hearsay.

5 **D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)**

6 A declaration is only competent evidence if it complies with Code of Civil Procedure section
7 2015.5, including certification under penalty of perjury under the laws of California, date and
8 place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not
9 “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

10 **E. Strategic Framing of These Objections**

11 These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sus-
12 tained, removes a specific factual predicate on which Defendants’ motions depend:

- 13 1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their
14 own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or
15 relied upon. Those are facts within PSA’s knowledge, not Defendants’.
- 16 2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was
17 “complete” or “properly transferred” lacks foundation unless the declarant identifies what the
18 file contained, what was indexed, what production history (including discovery responses,
19 deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
- 20 3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase
21 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
22 — is a live factual dispute. A declaration cannot retroactively transform disputed process
23 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
24 can do that.
- 25
-

III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE NO. 10152298)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the litigation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the jury decided” is not within declarant’s personal knowledge; the trial record — not a summary declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed remedy:** Sustain / Disregard.
5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresentation.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and without merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800, 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.
7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Objection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true.

1 **Proposed remedy:** Disregard / Sustain.

2 8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and com-
3 plete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:**
4 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer
5 contents; completeness claim must be supported by the underlying index/log, not a bare sum-
6 mary. **Proposed remedy:** Strike / Sustain.

7 9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (suc-
8 cessor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowl-
9 edge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant
10 cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sus-
11 tain.

12
13 **IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK**
14 **FILE NO. 10157177)**

15 1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause
16 of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code §
17 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike
18 / Sustain.

19 2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and spec-
20 ulative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading
21 sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.

22 3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear
23 this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional
24 analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.

25 4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were
26 already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:**
27 Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually
28 decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.

- 1 5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from
2 relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800.
3 Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:**
4 Strike / Sustain.
- 5 6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by suc-
6 cessor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code
7 §§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA
8 said or understood. **Proposed remedy:** Strike / Sustain.
- 9 7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to succes-
10 sor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:**
11 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “com-
12 plete file” means, what was indexed, and what production history was conveyed; underlying
13 transfer log/index not attached. **Proposed remedy:** Strike / Sustain.
- 14 8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evi-
15 dence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702,
16 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed**
17 **remedy:** Strike / Sustain.
- 18 9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was
19 conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court
20 orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:**
21 Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained
22 and what specifically was conveyed; underlying documents not produced. **Proposed remedy:**
23 Strike / Sustain.
- 24 10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Cham-
25 bers’s prior discovery responses, deposition testimony, or prior court filings regarding the
26 scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction
27 of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of
28 Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128

Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing.
Proposed remedy: Disregard / Strike.

11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.”
Objection(s): Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectionable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectionable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant declarations are not competent evidence. **Proposed remedy:** Disregard in full.

VI. SUMMARY OF OBJECTIONS BY CATEGORY

A. Legal Conclusions (Evidence Code § 800)

The following statements are impermissible legal conclusions: - “privileged litigation conduct” - “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

Ruling requested: SUSTAIN all objections. These are legal conclusions for the Court, not facts within declarant’s personal knowledge.

B. Lack of Personal Knowledge (Evidence Code § 702)

The following statements lack foundation for personal knowledge: - What “the jury decided” - What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained - What successor counsel (PSA) received, understood, or relied upon

Ruling requested: SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie, 99 Cal.App.4th at 30.)

C. Hearsay (Evidence Code § 1200)

Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

Ruling requested: SUSTAIN hearsay objections.

D. Improper Argument

Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

Ruling requested: SUSTAIN objections to argumentative material.

E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)

Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based summaries of writings are inadmissible to prove the content of those writings where the originals (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [secondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral testimony inadmissible to prove content of writing].)

1 **Specific application:** Defendants’ declarations repeatedly reference the “complete file,” what was
2 “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of
3 writings — without attaching the transfer index, the trial record, or the underlying orders. These
4 portions must be excluded.

5 **Ruling requested:** SUSTAIN. Strike all secondary-summary passages and exclude from eviden-
6 tiary consideration on both the Demurrer and the Anti-SLAPP motion.

7 **F. Non-Compliance with Code Civ. Proc. § 2015.5**

8 Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not
9 competent evidence and must be disregarded in its entirety.

10 **G. Failure of Burden (Global)**

- 11 • **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and**
12 **arguments without foundation, Defendants have failed to introduce any admissible evi-**
13 **dence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations**
14 **regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary**
15 **record.**

16 **H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement**

17 For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or
18 equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment**
19 **by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript mate-
20 rial from background to admissible substantive evidence.

- 21 • **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
22 **Impeaching passage:** Feb. 18, 2025, p. 181: “all this stuff has been in his possession since
23 August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; im-
24 peaches the “news to me” posture.
- 25 • **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching**
26 **passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**
27 Substantive evidence of Dolan origin; impeaches “unknown provenance.”
- 28 • **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching**

1 **passage:** Feb. 1, 2024 Compex subpoena (Order No. CA1147102-021) requesting identical
2 materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now
3 deny receiving.

- 4 • **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8,
5 p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication;
6 waiver of authenticity dispute.

7 **Ruling requested:** Sustain objections and deem the transcript passages admissible as substantive
8 evidence under § 1235 to impeach each corresponding declaration assertion.

10 **VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIES-** 11 **CENCE AS EVIDENTIARY BARS TO DEFENDANTS’ DECLARATIONS**

12 **A. The Triangulation Framework**

13 The evidentiary objections set forth in Sections III–VI above operate in conjunction with three
14 independent estoppel doctrines that foreclose Defendants’ ability to introduce any competent evi-
15 dence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

- 16 1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days re-
17 garding the authenticity and provenance of the 911 audio, body-worn camera footage, and
18 CAD logs—then asserted, on the eve of trial, that these materials were of “unknown prove-
19 nance” and “news to me.” This was silence in the face of materials whose content included
20 a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff’s own
21 voice, and independent eyewitness corroboration—core liability evidence that a reasonable
22 attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute.
23 Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants’ silence where
24 speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are
25 estopped from now contesting what they acquiesced to for nearly two and a half years.
- 26 2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-
27 rials at issue—specifically, the 911 audio (including Abdelhalim’s admissions, the operator’s
28 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff’s own recorded

voice identifying the striking vehicle) and the BWC (including the independent Rosemond eyewitness statement and Plaintiff’s own on-scene statement)—as authentic through: (a) **receipt in August–September 2022 discovery and sworn deposition course** (Rosario deposition August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present; 911-related testimony) **without a timely written authenticity or provenance challenge in the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”). Under § 1414(b), this course of conduct authenticates the materials and waives any authenticity challenge asserted for the first time in declarations supporting the current motions.

3. **Sham-Affidavit Rule (D’Amico, Scalf)**: If any portion of the Chambers declaration or the Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testimony, or the file-transfer records regarding what was conveyed to successor counsel, the sham-affidavit rule bars reliance on those contradictory statements to create a triable issue. D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

B. Application to the “Complete File” Assertions

The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

1. **Lack of Foundation (Evid. Code § 702)**: The declaration does not establish what specific production history was conveyed, what index or transfer log was used, or how declarant verified “completeness.”
2. **Estoppel by Silence**: If the file was indeed “complete,” why did successor counsel represent in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came from”? The 883-day silence—followed by the “unknown provenance” representations—is irreconcilable with a “complete transfer” position. Defendants cannot now introduce declarations claiming completeness when their own court-facing representations assumed the opposite.

1 **3. Authentication by Acquiescence:** The materials at issue were treated as authentic from
2 September 2022 through January 2025. A declaration asserting that the materials were some-
3 how “not properly conveyed” contradicts the defense’s own course of conduct and is barred
4 under § 1414(b).

5 **C. Application to the “News to Me” Contradiction**

6 The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for what-
7 ever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration
8 that attempts to rehabilitate the “news to me” position is:

- 9 1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit
10 rule;
11 2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th
12 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B
13 (“provided by Dolan”) is totally inconsistent;
14 3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood
15 or believed (Evid. Code § 1200).

16 **D. Ruling Requested**

17 The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem
18 the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3)
19 estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623
20 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or
21 “no knowledge” as barred by the sham-affidavit rule.

23 **VII. CONCLUSION**

24 Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-
25 evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot
26 substitute for record proof of what was actually conveyed during the attorney-substitution process
27 and what the trial court was told and relied upon. Those are record facts, provable only through
28 the record itself — transfer indices, discovery responses, deposition transcripts, minute orders,

1 and reporter's transcripts — not through after-the-fact characterizations by interested declarants.
2 These objections preserve the record and request the Court exclude all inadmissible material from
3 consideration on both the Demurrer and the Special Motion to Strike.

4 **DATED:** April 16, 2026

5 Respectfully submitted,

6 _____
7 FRANCISCUS DYLAN ROSARIO
8 _____

9 **APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)**

10 **Declaration 10152298 (Anti-SLAPP)**

- 11 1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) —
12 **Proposed remedy:** Strike.
- 13 2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
14 **Proposed remedy:** Strike.
- 15 3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation /
16 secondary evidence) — **Proposed remedy:** Disregard.
- 17 4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
18 **Proposed remedy:** Disregard.
- 19 5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) —
20 **Proposed remedy:** Strike.
- 21 6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Pro-**
22 **posed remedy:** Strike.
- 23 7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) —
24 **Proposed remedy:** Disregard.
- 25 8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary
26 evidence) — **Proposed remedy:** Strike.
- 27 9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge;
28 hearsay) — **Proposed remedy:** Strike.

Declaration 10157177 (Demurrer / Chambers)

10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foundation) — **Proposed remedy:** Strike.

14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
Proposed remedy: Strike.

16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.

17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2^o evidence re PSA conveyance) — **Proposed remedy:** Strike.

19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / contradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

Declaration 10057589 (Meet-and-Confer)

21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence) — **Proposed remedy:** Strike.

22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

1 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
2 **Proposed remedy:** Disregard.

3 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
4 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

5 _____
6 **DATED:** April 16, 2026

7 Respectfully submitted,
8 _____

9 FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION AND REQUEST FOR
JUDICIAL NOTICE IN SUPPORT OF
OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE "SMOKING-GUN" PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." > (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that "credibility" and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense's non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > "Sure. They were provided by Dolan. He has had them for whatever, sure." > (RT 7, p. 213, ll. 13–15.)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers' presence.
3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal knowledge / record basis: I attended the deposition; 911-related testimony was given.
4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 admission.

II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:

“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”

4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:

“All the alleged conduct occurred squarely within the judicial proceeding.”

5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded allegations were true and assert only legal immunity.
6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: service of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the

September 30, 2022 deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.

9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the extent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.
10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the **“unknown provenance” / “not produced”** position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s

“news to me” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).

13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and **deferral / limitation rulings** on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter’s transcripts and minute orders for Case No. CGC-21-594102.
14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel’s court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to

accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants’ exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the 911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).
22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional principal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
 - a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter's transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).

- c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.
-

IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:
1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
 2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
 3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
 4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
 5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (**pp. 139–141**) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
 6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.

7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)
-

X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.
-

X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:

“We have two 911 records that the Defense has been trying to suppress.”

(Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr’g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.

X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr’g Tr. pp. 291:26–292:7). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294).

32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.

XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.

34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set

aside a judgment procured through fraud on the tribunal as described above.

XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).
36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.
37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

FRANCISCUS DYLAN ROSARIO

PART II — REQUEST FOR JUDICIAL NOTICE (COURT RECORDS AND AUTHORITIES)

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records

necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state."

This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pincites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and

to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pincites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pincites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pincites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pincites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see **Bench Binder App. 2**) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see **Bench Binder App. 5**). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see **Bench Binder App. 3**). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s consolidated Brief Re: Fraud on the Court; Estoppel; and Exhibit-by-Exhibit Estoppel Record (filed concurrently with these oppositions). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (see **Bench Binder App. 6**). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.
- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites

pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.

- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

PART III — REQUEST FOR JUDICIAL NOTICE (CERTIFIED HEARING TRANSCRIPTS) — FOLDED INTO RJN PACKAGE

I. RELIEF REQUESTED

Plaintiff requests that the Court take **judicial notice** under **Evid. Code § 452(d)** (official acts of a public entity), **§ 453** (proceedings of a court of record), and **Cal. Rules of Court, rule 3.1306(c)** (reporter’s transcript of proceedings in the same case), of the **certified reporter’s transcripts** of the following hearings in Rosario v. Abdelhalim, CGC-21-594102 (and related register entries as appropriate):

1. **January 27, 2025** hearing transcript (excerpts cited in SAC Exhibit K).

2. **January 28, 2025** hearing transcript (SAC Exhibit L).
3. **February 18, 2025** hearing before the Garrett L. Wong (Sandra L. Carranza, CSR 7062) (SAC Exhibits C and M).
4. **February 28, 2025** hearing transcript (SAC Exhibit N).

II. SOURCE DOCUMENTS (DECLARATION ATTACHMENT LIST)

Declarant will identify the **certified reporter's transcripts** for the hearings listed in Section I, including the same materials designated among the transcript excerpts in Plaintiff's Second Amended Complaint Exhibit Appendix (Exhibits K, L, C, M, N, O, P, and Q, as applicable). True and correct copies will be attached to any declaration filed in support of this request; conformed or clerk-certified copies may be lodged with the Court on order.

III. COVER SHEET: PAGE AND LINE CITES USED IN SAC AND COMPANION DRAFTS

Topic	Citation	Used in
MIL framing	Hr'g Tr. Jan. 27, 2025, p. 7, ll. 10–14	SAC ¶¶40; Exhibit K
Continuance opposition / 883-day denial	Jan. 27, pp. 15, 57	SAC ¶¶41, 112(b); Exhibit K
Navaratnasingham hearing statements	Jan. 27, pp. 16, 19	SAC ¶126(c)–(d); Exhibit K
CCP § 581(d) dismissal motion	Jan. 28, p. 90, ll. 17–33	SAC ¶40(c); Exhibit L
2021 transmission / production	Feb. 18, p. 139, l. 11	SAC ¶¶26, 68; Exhibit M

Topic	Citation	Used in
Jessup production quotes	Feb. 18, pp. 140–141	SAC ¶¶42; Appendix 10; Exhibit M
MSC-date / “news to me”	Feb. 18, p. 141, ll. 4–11	SAC ¶¶43; Exhibit C/M
Service on prior firm	Feb. 18, p. 141, ll. 18–23	Appendix 10; Exhibit M
SFPD direct BWC links	Feb. 18, p. 145, ll. 4–18	Brief 09 §III.A; Appendix 10; Exhibit M
Continuance requests	Feb. 18, pp. 147, 151, 164	SAC ¶¶47(a); Exhibit M
Position-B possession / oppose continuance	Feb. 18, p. 181, ll. 6–23	SAC ¶¶88, 112(b); Exhibit M
Protective-order posture	Feb. 28, pp. 296–307	SAC ¶¶47(f); Exhibit N
Trial Day 7 sequence	RT 7 (multiple lines)	SAC ¶¶58–63, 99; Exhibit O
Trial Day 8 / read-back	RT 8, PG 12–14, 1958–1959, pp. 1990–1993	SAC ¶¶46–47; Exhibit P
Closing argument	RT 10, pp. 1011–1012	SAC ¶¶45, 112(b); Exhibit Q

IV. DECLARATION SHELL (TEXT FOR PROPOSED DECLARANT)

1. I am a person with knowledge of the facts stated herein / I am Plaintiff / I am counsel of record [select one].
2. Attached as Exhibit [...] are true and correct copies of [certified hearing transcript PDFs] for the hearings listed in Section I.
3. The page and line citations in the cover sheet (Section III) match the pagination of the attached certified transcripts.
4. I will lodge conformed or clerk-certified copies of the reporter’s transcripts with the Court on order, consistent with the Court’s rules and any direction from the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

Declarant

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO,

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com